
Name

Mailing Address

City State Zip Code

Phone Number

E-mail Address (optional)

FORM A:
Use this form for Expungement
or Resentencing if you are
currently serving your sentence

- ☐ MONTANA _____ JUDICIAL DISTRICT COURT, _____ COUNTY
☐ IN THE JUSTICE COURT OF _____ COUNTY, STATE OF
MONTANA
☐ IN THE MUNICIPAL OR CITY COURT OF _____, MONTANA

In re the Expungement or Resentencing of
the Marijuana-Related Conviction of

_____,
Petitioner.

Case No: _____

Petition for Expungement or
Resentencing of Conviction

I hereby petition this Court for resentencing or redesignation of the following conviction
in accordance with the Montana Marijuana Regulation and Taxation Act (MMRTA).

Venue for this Petition is proper in this Court because this is the Court in which I was
sentenced for this offense.

On or about _____ (date), I was convicted of the following
offense that I believe is eligible for resentencing or redesignation under the MMRTA:

- ☐ Criminal Distribution of Dangerous Drugs (marijuana),
in violation of § 45-9-101, MCA;
- ☐ Criminal Possession of Dangerous Drugs (marijuana),
in violation of § 45-9-102, MCA;
- ☐ Criminal Possession with Intent to Distribute (marijuana),
in violation of § 45-9-103, MCA;
- ☐ Criminal Production or Manufacture of Dangerous Drugs (marijuana),
in violation of § 45-9-110, MCA;
- ☐ Criminal Possession of Drug Paraphernalia (marijuana),
in violation of § 45-10-103, MCA;

- ☐ Manufacture or Delivery of Drug Paraphernalia (marijuana),
in violation of § 45-10-104, MCA;
- ☐ _____ (specify offense)

I am currently serving my sentence for this conviction.

I believe this conviction is eligible for ☐ expungement / ☐ resentencing as a
misdemeanor / ☐ resentencing as a civil infraction because _____

I ☐ am / ☐ am not requesting a hearing on this Petition.

I have filed the following documents along with this Petition:

- ☐ A copy of my criminal record from the Montana Department of Justice. *(required)*
- ☐ My Certificate of Service that indicates how I served copies of these
documents upon the County Attorney for the County in which I am filing this
Petition. *(required)*
- ☐ A copy of the Judgment or Sentencing Order for this conviction. *(recommended)*
- ☐ A proposed Order granting this Petition.
- ☐ Other: _____

Dated this _____ day of _____, 20____.

(date) (month) (year)

(your signature)

(print your name)